



सत्यमेव जयते

INDIA NON JUDICIAL

Government of National Capital Territory of Delhi

e-Stamp

Certificate No.	: IN-DL00029313466458X
Certificate Issued Date	: 06-May-2025 04:33 PM
Account Reference	: SHCIL (FI)/dl-dlcl/LAJPAT NAGAR/DL-DLH
Unique Doc. Reference	: SUBIN-DLCL-SHCIL.98765426258525X
Purchased by	: BLUE RIDGE RETAILS PRIVATE LIMITED
Description of Document	: Article 35(III) Lease with security upto 10 years
Property Description	: SHOP NO 03 GROUND FLOOR ELDECO JUNCTION KASHMIRI GATE METRO STATION NEW DELHI-110006
Consideration Price (Rs.)	: 0 (Zero)
First Party	: BLUE RIDGE RETAILS PRIVATE LIMITED
Second Party	: THEOBROMA FOODS PVT LTD
Stamp Duty Paid By	: BLUE RIDGE RETAILS PRIVATE LIMITED
Stamp Duty Amount(Rs.)	: 68,000 (Sixty Eight Thousand only)



Rajeev Chauhan
S970 7140 3737

Please write or type below this line

Dinesh Kumar
8786 1611 9885



For Blue Ridge Retails Private Limited

Statutory Note:

The authenticity of this E-stamp Certificate should be verified at www.shcsltd.com or using e-Stamp Mobile App of Stock Holding Corporation of India Ltd. and as available on the website / Mobile App renders it invalid.

Authorised Signatory



CENTRAL DIST. DELHI



SUB LEASE AGREEMENT

This Sub-Lease Agreement is made in New Delhi on the 14th day of May 2025.

BETWEEN

Blue Ridge Retails Private Limited, a company incorporated under the provisions of the Companies Act 1956 and having its registered office at 201-212, Second Floor, Splendor Forum Jasola District Centre New Delhi-110025, (hereinafter referred to as the "**Sub-Lessor**") acting through its Authorized Signatory **Mr. Rajeev Chauhan** authorized vide Board Resolution dated 11.07.2022, which expression shall unless it be repugnant to the context or meaning thereof means and includes its successors, nominees and assigns) of the **FIRST PART**;

AND

Theobroma Foods Pvt. Ltd., CIN: U15100MH2004PTC46202 (hereinafter referred to as the "**Sub-Lessee**"), having its registered office situated at 32/33A, Deonar Village Roand, Deonar, Opp. Metal Box Company, Govandi East, Mumbai – 400088, acting through its Authorized Signatory **Mr. Dinesh Kumar** (which expression shall, unless it be repugnant to the context or meaning thereof mean and include its successors, nominees and assigns) of the **SECOND PART**.

In this Sub-Lease Agreement, unless the context clearly indicates a contrary intention, a word or an expression which denotes a natural person shall include an artificial person (and vice versa), any one gender shall include the other genders, the singular shall include the plural (and vice versa).

The "Sub-Lessor" and the "Sub-Lessee" are also referred to individually as "Party" and jointly as "Parties".

WHEREAS

- A. The Sub-Lessor has entered into an Lease Agreement dated 24th October, 2019 ("**Lease Agreement**") with the Delhi Metro Rail Corporation Limited (DMRC), whereby DMRC has given to the Sub-Lessor a 3344.52 sqm (Area handed over) at Kashmere Gate Metro Station ("**Leased Area**"), as on Lease for a period of 15 years from the date of agreement i.e. 24.10.2019 ("**Lease Period**") for commercial exploitation which includes to develop, finance, commission, operate, manage and maintain the Leased Area.
- B. The Sub-Lessor has renovated the construction of the Leased Area as approved by DMRC under terms of the Lease Agreement and the Sub-Lessor is entitled to sub-lease the Leased Area and/or part thereof for the Lease Period. Sub-Lessor & Sub-Lessee has

For Blue Ridge Retails Private Limited


Authorized Signatory

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Deed Related Details

Deed Name :- Lease Deed - 35(LEASE WITH SECURITY UPTO 10 YEARS),

Property Description

SHOP NO 03 GROUND FLOOR ELDECO JUNCTION KASHMIRI GATE METRO STATION NEW DELHI-110008

Money Related Details

Consideration Value :- Rs.0/- , Copying Fee :- Rs.100/- , Registration Fee :- Rs.1000/- , Stamp Duty :- Rs.68000/-

This Document Of :- Lease Deed - 35

LEASE WITH SECURITY UPTO 10 YEARS

Presented by: SH/Smt

S/o,W/o R/o
201-212,
Second
Floor,
Splendor
Forum
Jasola
District
Centre
New
Delhi-
110025

Rajeev Chauhan

The Office Of Sub-Registrar, Delhi this 14-05-2025 03:27:14 day Wednesday between the hours of

Registrar/Sub Registrar
SubRegistrar-I, Kashmere Gate (Central)

Execution admitted by the said Shri/Ms

Dinesh Kumar

and Shri/Ms

Rajeev Chauhan

Who is/are identified by Shri/Smt/Km Vikas Kumar S/o W/o D/o Krishan Lal R/o 1-214, Swami Dayanand Colony, Kishan Ganj, Malka Ganj, South Delhi, Delhi-110008 and Deepak Panchal S/o W/o D/o Rishi Nand Panchal R/o B-247, Gali No. 5, Lakshmi Colony Part-1, Meethapur, Badarpur, South Delhi, Delhi-110044

Content of the documents explained to the parties who understand the conditions and admit them as correct

Certified that the left (or Right as the case may be) hand thumb impression of the executant has been affixed in my presence

14/05/2025 15:30:39

Registrar/Sub Registrar
SubRegistrar-I, Kashmere Gate (Central)

to develop, operate, maintain the leased/ subleased area by adhering the terms of Lease Agreement dated 24.10.2019 ensuring all safety, security, approvals etc. throughout the lease/ sub-leased period, failing which DMRC can take action in terms of Agreement dated 24.10.2019. The activities allowed in the Leased Area shall be governed by the extent provisions of Master Plan of Delhi or any activities permitted by the local authority under the administrative jurisdiction. Indicative nature of the activities and facilities that are allowed at the Leased Area are as under:

- Shopping complex/shopping mall/shopping plaza
- Departmental Store, Discount Store, Hypermarket
- Restaurants, Fast Food Stalls, Kiosks, food court, hotel
- Offices, Banks, lounge.
- Educational Institutes, coaching centre
- Computer Training Centres, IT centres
- Warehouse/store
- Showrooms for Consumer goods like Garments, Electronics/electrical Items, general utilities, automobiles etc.

C. The Sub-Lessor is well and sufficiently in possession of Shop No. 03, Ground Floor, Eldeco Junction, Kashmiri Gate Metro Station, Pin code - 110006, having Covered area of 540 Sq. Ft., (hereinafter referred to as the "Said Premises").

D. The Sub Lessee is clarified and unconditionally agrees and accepts that:

- (i) The Sub-Lessor has been entitled, during the subsistence of its Lease Agreement with DMRC, to allow the use of the Leased Area through a sub-lease arrangement to sub-Lessee/s subject to the terms and conditions contained in the Lease Agreement and subject to all applicable laws.
- (ii) The Sub-Lessor, under the terms of its Lease Agreement with DMRC, is entitled to sublease the use of the Leased Area to the Sub Lessee, during the subsistence of its Lease Agreement only. Also, it is a clear stipulation/condition of the Lease Agreement with DMRC that the lease granted to the Sub- Lessee under the Sub Lease Agreement shall terminate simultaneously with the termination of the Lease Agreement of Sub-Lessor with DMRC including on sooner determination of the Lease Agreement by DMRC for any reason whatsoever and further that the Sub Lessee shall not have any claim whatsoever against DMRC for any such termination.

E. The Sub-Lessee is engaged in the business of running and selling "food, beverages & related products & restaurant services including sale of related merchandise" as per terms and condition of the LOI signed with the Sub-Lessor and approval given by statutory norms from time to time (hereinafter referred to as 'said Business').

F. The Sub-Lessee has approached Sub-Lessor to take on Sub Lease the Said Premises.

For Blueridge Retails Private Limited


Authorised Signatory



Document Registration Summary 2

Print Date :- 14-May-2025

Proofing Number : 2025/19/7464

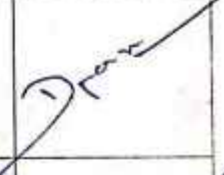
Type Of Deed Lease Deed - 35

Sr.NO	Party Name and Address	Party Type	Photo	Fingerprint	Signature
1	Dinesh Kumar Theobroma Foods Pvt Ltd 32/33A, Deonar Village Road, Deonar, Opp. Metal Box Company, Govandi East, Mumbai-400088 ,,, Delhi, - ,Pan No: ,Age	LESSEE			
2	Rajeev Chauhan Blue Ridge Retails Private Limited 201-212, Second Floor, Splendor Forum Jasola District Centre New Delhi-110025 ,,, Delhi, - ,Pan No: ,Age	LESSOR			

The Executants Have Admitted The Execution

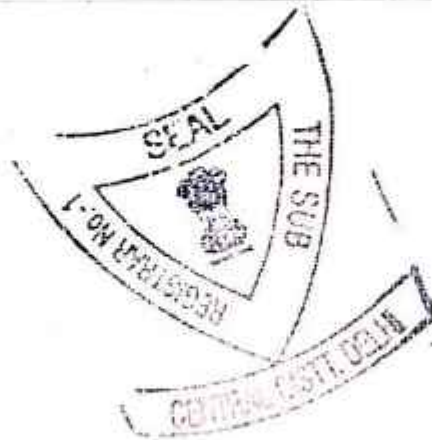
Stamp No. 3 at On Dated 14-May-2025 03:28:43 pm

Witness

Sr.NO	Witness Name	Witness Photo	Witness Thumb	Witness Signature
1	Deepak Panchal S/o/D/o :-Rishi Nand Panchal Address :-B-247, Gali No. 6, Lakhpat Colony Part-1, Meethapur, Badarpur, South Delhi, Delhi-110044			
2	Vikas Kumar S/o/D/o :-Krishan Lal Address :-J-214, Swami Dayanand Colony, Kishan Ganj, Malka Ganj, South Delhi, Delhi-110007			

Stamp No. 4 at 14-May-2025 03:30:35 pm

SubRegistrar-I, Kashmere Gate (Central)



- G. The Sub-Lessee being fully conversant with the specific space requirement, terms and conditions of DMRC, and having satisfied itself by way of due diligence as to the rights and title of the Sub-Lessor to the Leased Area and the Said Premises and to the right/title of the Sub-Lessor to sub-lease the same, has approached the Sub-Lessor for taking on sub-lease the Said Premises (hereinafter referred to as the "Sub-Lease"); for running the Said Business.
- H. Pursuant to the rights granted to the Sub-Lessor under the Lease Agreement, the Sub-Lessor has agreed to Sub-Lease to the Sub-Lessee the Said Premises in the Leased Area.
- I. The Parties have agreed to execute this Sub-Lease Agreement recording the mutually accepted terms and conditions of the Sub-Lease. The terms, stipulations and conditions of this sub-lease agreement are as follows: -

ARTICLE - 1

1. SUB-LEASE AND TERM

The Sub-Lessor, subject to the terms and conditions of this Sub Lease Agreement, hereby gives on Sub-Lease to the Sub-Lessee and the Sub-Lessee hereby takes on Sub-Lease the Said Premises from the Sub-Lessor for a period of 9 (nine) years ("Term") from 02.04.2025 to 01.04.2034.

ARTICLE - 2

2. LEASE RENT

- 2.1 In consideration of the leasehold rights to be granted to the Sub Lessee for the purposes of Said Business the Sub-Lessor hereby agrees that Sub-Lessor shall receive from Sub-Lessee a monthly lease rent @ Rs. 1,25,000/- per month (Rupees One Lakh Twenty Five Thousand Only) and GST will be charged extra as per applicable (hereinafter referred to as "Lease Rent"), from the Sub Lease Commencement Date [Defined hereinafter]. Monthly Lease Rent shall be payable in advance after expiry of fit-out period or from the date of commencement of business, whichever is earlier.
- 2.2 The commencement date of the Lease Rent shall start immediately on expiry of Fit Out Period from the date of handover of the Said Premises by the Sub-Lessor for fit outs in terms of clause 3 hereinafter OR the commencement of commercial business by Sub Lessee, whichever is earlier, (in either case referred to hereinafter as "Sub Lease Commencement Date").
- 2.3 The Parties herein agree for 15% escalation after every 3 (three) years from the Date of Commencement of business or expiry of fit-out period whichever is earlier on last paid Lease Rent & CAM Charges.
- 2.4 The Lease Rent shall be paid by the Sub Lessee to the Sub-Lessor in advance by 10th day of every month in advance.

For Blueridge Retails Private Limited


Authorised Signatory

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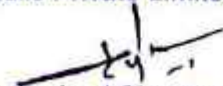
- 2.5 The Lease Rent payable under this Sub Lease Agreement shall be subject to deduction of Income tax as applicable from time to time.
- 2.6 The Sub Lessee shall also pay the GST or any other applicable Taxes on the Lease Rent, if any.
- 2.7 The Sub-Lessee shall pay 4 (four) months' Lease Rent equivalent to Rs. 5,00,000/- (Rupees Five Lakhs Only) Security Deposit as advance lease rent to the Sub-Lessor.
- 2.8 In case of delay in making payment of Lease Rent payable by the Sub-Lessee beyond the period of 7 Days from the date it becomes due, the Sub- Lessee shall be liable to pay interest @ 20 % per annum plus GST for the period of delay. All payment of including Lease Rent and Security Deposit shall be made by cheque/RTGS/Net Banking or any other prevalent mode of payment in the escrow account the details of which are as follows "Bank Name- HDFC, Beneficiary Name- BLUERIDGE RETAILS PRIVATE LIMITED, ACCOUNT NO- 50200041260103, IFSC CODE- HDFC0000467".
- The Sub Lessee unconditionally accepts to comply with the provision that all payments receivable to be made to the Sub-Lessor will be deposited in the said escrow account.
- 2.9 The Lease Rent shall be exclusive of all property taxes, which shall be borne and paid by the Sub-Lessor.
- 2.10 The Sub-Lessor shall bear and pay all outgoings such as property rent, property tax, levies, ceases or statutory dues in respect of the premises, present and future (including increases), whether levied or accrued prior to or during the tenure.
- 2.11 The Parties shall reconcile the mutual receivables and payables statement monthly and any excess/deficit payments shall be thus adjusted/payable by the 10th of succeeding month. At each such reconciliation, Sub- Lessor shall have full liberty to inspect the books of accounts of Sub Lessee. The venue for such quarterly re-conciliation of accounts will be the office of Sub Lessee at the Said Premises. If it so desires, Sub-Lessor may appoint any officer, authorizing him/her to monitor the receipts from the business and Sub Lessee will extend co-operation in this regard and make available all financial records in this regard for the scrutiny of the officer. Such an officer or any other person authorized by him will be allowed to physically monitor the sale process and receipt.

ARTICLE - 3

3. FIT OUT DATE /PERIOD

- 3.1 The Sub Lessee shall complete the fit out works and commence its business from the Said Premises within 45 (forty five) days from the date of actual possession handover (02.04.2025) or business commencement, whichever is earlier (herein 'Fit-Out Period'). In case Sub Lessee fails to complete its fit-outs and/or commence its business within the Fit-out Period due to any reasons whatsoever, Sub Lessee shall pay Sub-Lessor Rs. 50,000/- per month as additional compensation till the time Sub Lessee starts its business from the Said Premises. However, if such delay continues for a period of 60 days, Sub-

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Lessee shall have the right to terminate this Sub Lease Agreement without any claim, dispute etc. from Sub-Lessor.

- 3.2 The Sub-Lessee confirms and undertakes that it shall obtain all pre-requisite sanctions, approvals, licenses, from all the Statutory/Competent Authorities which may be necessary for carrying out fit outs and start-up/commencement of Said Business in the Said Premises and which are solely in the scope of the Sub-Lessee.
- 3.3 The Sub-Lessee further agrees that its interior fit outs/works shall not cause any damage to the existing structure/systems. The Sub-Lessee shall ensure that electrical systems, plumbing, including smoke extraction system and any other structural/finishing work done internally within the Said Premises shall not pose any fire or smoke, electrical, structural, pollution and health hazards to other Sub-Lesseees /occupants of the Leased Area and no inconvenience, damage/loss is caused to any other occupier, visitor and person by the Sub-Lessee or its representatives during or post fit out period. The Sub-Lessee undertakes not to cause any damage to the building of the Leased Area & station area while completing the interior work in the Said Premises and in the event any such damage is caused, the Sub Lessee agrees to reimburse the Sub-Lessor, costs of rectification, penalty, damages as imposed by any statutory authority.
- 3.4 Sub-Lessor will provide electricity and water to Sub Lessee as per the requirements for fit outs & availability. The charges for consumption of electricity (at the DMRC rate) and water during fit out shall be paid by Sub Lessee to Sub-Lessor on monthly basis and/or within 7 days of demand been raised.

ARTICLE - 4

4. SECURITY DEPOSIT.

- 4.1 The Sub-Lessee has agreed to pay a sum equivalent to 4 (four) months' Lease Rent aggregating Rs. 5,00,000/- (Rupees Five Lakhs Only) as Interest Free Security Deposit (hereinafter referred to as the "Interest Free Security Deposit/SD", 2 (two) months' SD aggregating to Rs. 2,50,000/- (Rupees Two Lakh Fifty Thousand only) payable at the time of LOI signing & balance 2 (two) months' SD aggregating to Rs. 2,50,000/- (Rupees Two Lakh Fifty Thousand only) at the time of registration of the Sub-Lease Agreement. Lease Rent, will be payable at the time of expiry of Fit-Out period or commencement of Business (after possession), whichever is earlier, whereas complete CAM and Other Service Charge shall be payable by the Sub-Lessee during the Fit-Out period. Utility Charges (for any utility used from the said Premises) shall be payable in actuals by Sub-Lessee as per the meter/sub-meter readings to the Sub-Lessor, within 10 (ten) days from receipt of invoice by the Sub-Lessee. Utility charges shall be payable from the date of handover of the said Premises by the Sub-Lessor to the Sub-Lessee.

For Blueridge Retails Private Limited


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- 4.2 At the time of termination or expiration of this Sub Lease Agreement, the Sub-Lessee shall handover peaceful and vacant possession of the Said Premises, (by handing over the keys of the Said Premises) to the Sub-Lessor. Normal wear and tears are accepted. Upon end of the term, early termination or sooner determination of this Sub Lease Agreement, and upon the handover of peaceful and vacant possession of the Said Premises by the Sub Lessee, the Sub-Lessor shall refund the whole amount of the Interest Free Security Deposit simultaneously by way of Demand Draft/Pay Order/Cheque payable at New Delhi after deducting unpaid Lease Rent, CAM Charges, electricity bill and water bill and any other unpaid dues (if applicable), with 10 (ten) days prior written intimation to the Sub lessee.
- 4.3 If the Sub Lessor fails to refund the Interest Free Security Deposit within 60 (sixty) days of handover of keys by Sub Lessee, the Sub Lessee shall be entitled to charge interest @18% p.a. on the outstanding amount of Interest Free Security Deposit till it is refunded.

ARTICLE - 5

5. USE OF THE SAID PREMISES

- 5.1 The Sub- Lessee agrees and undertakes that it shall use the Said Premises for running the Said Business in compliance with the Lease Agreement dated 24.10.2019 signed between DMRC and Sub-Lessor. In the event of a clash between the Lease Agreement and this Sub – Lease Agreement, the provisions of Lease Agreement will prevail.
- 5.2 In case the Sub-Lessee involves in any illegal activities as per any law, the Sub-Lessor shall be entitled to terminate the Sub Lease Agreement.
- 5.3 This Sub-Lease Agreement does not give any implied or express, oral and/ or written concurrence/ approval of the Sub-Lessor to the Sub- Lessee for conduct of any trade, activity, commerce and / or things and/ or articles and/ or thing and/ or aspect within the Said Premise, which is either contrary to law or against the National Security.

ARTICLE – 6

6 CAM CHARGES, WATER CHARGES & OTHER CHARGES

- 6.1 The Sub-Lessee shall pay to the Sub-Lessor Rs. 10,000/- (Rupees Ten Thousand only) of the Said Premises as Common Area Maintenances charges (herein “CAM Charges”). The CAM Charges are payable in advance per month from the actual date of possession. The Charges shall be payable within 10 (ten) days of the date of receipt of invoice by the Sub-Lessor. Any increase in input costs, taxes etc. for providing the CAM services shall

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ARTICLE - 5

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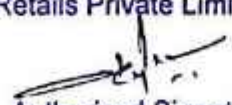
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- 5.2 In case the Sub-Lessee involves in any illegal activities as per any law, the Sub-Lessor shall be entitled to terminate the Sub Lease Agreement.
- 5.3 This Sub-Lease Agreement does not give any implied or express, oral and/ or written concurrence/ approval of the Sub-Lessor to the Sub- Lessee for conduct of any trade, activity, commerce and / or things and/ or articles and/ or thing and/ or aspect within the Said Premise, which is either contrary to law or against the National Security.

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be borne and payable by Sub-Lessee proportionately. GST or any other tax, as applicable to the CAM charges shall be paid by the Sub-Lessee.

- 6.2 The CAM services includes AMC for fire- fighting system provided by Sub-Lessor, common area housekeeping, common area security, maintenance of common electrical panel related to Leased Area, common overhead water tank maintenance, common area facilities provided by Sub-Lessor, common area utilities provided by Sub-Lessor in the Leased Area including the equipment installed by the Sub-Lessor therein. The common area maintenance shall be done by the Sub-Lessor and/or its nominated Maintenance Agency, subject to the provisions of the Lease Agreement. The same shall be subject to timely payment of CAM charges by the Sub-Lessee. In case space for overhead water tank is provided by Sub-Lessor to the Sub Lessee then the same shall be maintained by the Sub Lessee at its own cost and expenses.
- 6.3 The Sub-Lessor shall, at its cost and expense, purchase and maintain during the Lease Period insurance of the Leased Area as may be required under the Lease Agreement.
- 6.4 The Sub-Lessor shall provide properly functioning and clean water supply to the Sub-Lessee at a fixed cost of Rs. 2500/- (Rupees Two Thousand Five Hundred only) per month and the Sub-Lessor will provide the bill of the same to the Sub-Lessee for payment. The Sub-Lessee shall install water tank inside the said Premises at its own cost.
- 6.5 The Sub-Lessee shall be liable for paying extra CAM charges on account of it carrying operations beyond standard business hours of 10 am to 12 pm on a particular day. The extra CAM charges shall be derived from considering the overall actual cost/expenses/fce/taxes etc. attributable to the Sub Lessee's extra hours of operation.
- 6.6 Further, no common generator backup is separately provided by the Sub-Lessor.
- 6.7 The Sub-Lessee can install the water tank inside the shop/premises. No additional area can be provided by the Sub-Lessor and No Water Tank space is provided on the roof as it has been explicitly barred by DMRC.

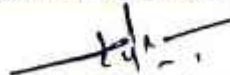
ARTICLE - 7

7. COVENANTS OF SUB-LESSOR

The Sub-Lessor hereby covenants with the Sub-Lessee:

- (i) To pay and discharge all prevailing and future municipal or any other taxes levied by any Governmental Authority, as per Applicable Law, at the rates then prevailing in relation to the Said Area. For the avoidance of doubt, the Parties shall continue to

For Blueridge Retails Private Limited


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bear their respective income tax liabilities in accordance with their respective independent incomes derived in terms of this Sub-Lease Agreement.

- (ii) it has complied with the terms and conditions of the Lease Agreement; the Lease Agreement is valid and subsisting as on date and there are no defaults in its compliance by the Sub-Lessor and no notice of termination has been received.
- (iii) The Sub-Lessee, on paying the agreed Lease Rent and other charges as agreed in this agreement and performing and observing the agreed terms and covenants herein may peacefully hold and enjoy the Said Premises during the Term without any interruption, interference or claims by or from the Sub-Lessor.
- (iv) The Sub-Lessor shall provide on possession delivery date, three phase permanent electrical connection of 19 K.W. at the Said Premises (along with the three phase pre-paid electrical meter) at Sub-Lessor panel. The electricity is being supplied by DMRC as per the availability and in terms of lease Agreement to the Leased Area through which Sub-Lessor shall provide electricity to the Said Premises. The Sub-Lessor shall endeavour smooth supply of electricity at the Said Premises and agrees that it shall not do any act, omission etc. due to which electricity supply at the Said Premises gets suspended/disconnected. However, the Sub-Lessor shall not be responsible for any disruption in supply of electricity, if same is caused by DMRC. No common generator backup shall be provided to the Sub-Lessee by the Sub-Lessor.

Provided that in the event of damage or burnout of the electrical meter for any reason whatsoever, the costs of repair or re-installation of a new prepaid electrical meter shall be borne and payable by the Sub-Lessee as per actual expenses.

- (v) The Sub-Lessor shall provide drainage connectivity from the Said Premises to the drainage system provided in the Leased Area.
- (vi) The Sub-Lessor shall provide 2 (two) AC outdoor units' space at no extra charges to the Sub-Lessee.

Provided that if any extra charge(s) is levied by DMRC in future, it shall be borne and payable by the Sub-Lessee.

- (vii) The Sub-Lessor, if technically feasible, will allow to install and provide proper and adequate space near the Said Premises at appropriate location as approved by DMRC for installation of Air-conditioning Condensing Units, Walk in Cooler Condensing Unit and V-SAT(hereinafter referred to as "Utilities") for running the Said Business. Sub-Lessee shall maintain/operate the networking equipment and Sub-Lessor shall not raise any objection for the same. It is expressly agreed between the Parties that if any permission is required from the concerned authority

For Blueridge Retails Private Limited


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for installation of abovementioned equipments than the same shall be obtained by Sub-Lessee at its own cost. It is mutually agreed between the Parties that Sub-Lessee has an access for servicing the abovementioned equipments solely after getting permission from DMRC. Any charges, if any, levied/revised by DMRC/Statutory authority for the installation of Sub-Lessee's Utilities would be payable by the Sub-Lessee.

- (viii) The Sub-Lessee shall also pay to the Sub-Lessor if at any point the Sub Lessee will increase the covered area for business operations beyond 540 sq. ft. "Additional area service charges", at the rate of Rs.150/- (Rupees One Hundred Fifty Only) per Sq. Ft. Per Month on the Covered area per month within 10 (ten) days of receipt of invoice of the same for providing proper and adequate space near/ appropriate location of the Said Premises with prior permission from DMRC after checking the feasibility. Additional area charges will escalate by 15% after every 3 (three) years from Sub-Lease Commencement Date. Additional area will charge on the complete area occupied and not in part and as approved by DMRC and as decided by Sub-Lessor.
- (ix) The Sub-Lessor agrees to provide to the Sub-Lessee all facilitating documents which in its possession and/or endeavour to obtain from DMRC/ authority all such documents as required by the Sub-Lessee to obtain necessary permissions from the statutory authorities of the Said Premises and all other necessary documents, declarations, disclosures, no-objection certificates and related papers pertaining to the Said Premises at its own cost and the same shall not be unreasonably withheld by the Sub-Lessor.
- (x) The Sub-Lessor has till date paid all the taxes raised on them by DMRC, and undertake to pay promptly and regularly all past, present and future property tax, ground tax and/or any other taxes on the Said Premises and any increase/other charges/surcharges of and shall indemnify and keep indemnified and hold harmless the Sub-Lessee from any claims, penalties, actions, costs, expenses that Sub-Lessee may suffer due to non-payment of the Said Premises taxes, ground tax and/or any other taxes.
- (xi) Notwithstanding anything contained under this Sub Lease Agreement, in case Sub-Lessee fails to apply or obtain any of the licenses for running of Said Business at the Said Premises at its own fault, Sub-Lessor reserves the right to terminate this Sub Lease Agreement by serving a notice of 30 (Thirty) days to the Sub-Lessee. Under the above said circumstances Sub-Lessee shall give the peaceful and vacant possession of the Said Premises to the Sub- Lessor and the Sub-Lessor within 7 days of receiving of peaceful and vacant possession of the Said Premises refund the Interest Free Security Deposit, subject to deduction of any unpaid Lease Rent, CAM & Other Utility Charges etc. and vice versa.

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- (xii) The Sub-Lessor shall provide chilled water line in the said premises for the purpose of air conditioning. The Sub-Lessor shall provide the AHU's unit for the said premises, but all High/Low Side, Commissioning and Servicing Work shall be in Sub-Lessee scope of work.
- (xiii) The Sub-Lessor shall provide single point main water line connection, single point electrical line connection, sewage/drainage line, main exhaust and fresh air line, fire fighting sprinklers along with smoke detector and panels where the Sub Lessee shall connect its internal respective lines for the smooth functioning of the restaurant.

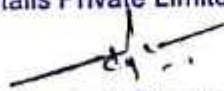
ARTICLE - 8

8. COVENANTS OF SUB - LESSEE.

The Sub- Lessee hereby covenants with the Sub-Lessor:

- (i) to be responsible at its own cost and expense for the overall supervision, control, and management inside Said Premises. The Sub- Lessee may obtain suitable insurance policies to safeguard its interest with respect to running of the Said Business in the Said Premises.
- (ii) to pay the Lease Rent regularly and without any delay or default, in accordance with Article 2 of this Sub Lease Agreement.
- (iii) to issue invoice, receipt & keep record of all invoices, receipts for every transaction related to the Said Business.
- (iv) the Sub-Lessee undertakes to comply all statutory compliances as laid by any statutory authority including DMRC, required to be followed for installing/relocation, if any of services at the Said Premises at its own cost and expenses.
- (v) to obtain all licenses or approvals required from any departments/authorities for carrying on the Said Business in the Said Premises and to comply with the terms and conditions of all such licenses/approvals and to bear and pay all taxes and outflows with regard and relating to the Said Business of the Sub- Lessee in the Said Premises. All such approvals/permits/license will be sought by the Sub-Lessee with due intimation to the Sub-Lessor and the Sub- Lessee shall always mention its sub-Lessee status while applying for any such permits/license.
- (vi) to pay Signage charges to Sub-Lessor /municipal authorities/concerned authorities, CAM Charges, all charges with respect to the electricity and water consumed in the Said Premises by the Sub- Lessee in accordance with the meter or sub-meter readings installed in the Said Premises from the possession delivery date on actual at the rate prescribed by the concerned authorities/ Sub-Lessor.

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- (vii) to put up signage as per terms and conditions of DMRC only on the space specifically designated and earmarked for this purpose by the Sub-Lessor. The space provided for the signage on the façade of the Premises. However, the Sub-Lessee shall be liable to pay all charges if applicable including levies and taxes on such signage if any laid by DMRC and/or any authorities.
- (viii) not to use the Said Premises for any purpose other than the purposes as agreed and specified herein and/or for purposes not permitted by DMRC under the Lease Agreement. The Sub-Lessor may allow change in usage subject to prior consent of DMRC. Sub-Lessee cannot change his format/brand/category to any other use other than specified used agreed in this agreement without obtaining written consent from the Sub-Lessor and on the terms and condition laid by Sub-Lessor in this regard.
- (ix) permit inspection of the Said Premises by Sub-Lessor during the regular working hours of the Sub-Lessee with prior written notice of at least 24 hours to carry out repairs of any services/installations inside the Said Premises. However, the inspection of said Premises by the DMRC/ Authority shall be governed by Article 20 of this Agreement.
- (x) not to keep or store or allow to be kept or stored in or around the Said Premises any goods, articles, or things of hazardous, inflammable or explosive nature e.g., Petrol, Diesel and not to use the Said Premises for any illegal purpose/activities. The Sub-Lessee shall be responsible and liable for any loss/ damage to any third party on account of any reason whatsoever.
- (xi) not to create any line, charge, mortgage or any kind of encumbrance on the Said Premises.
- (xii) not to make any structural changes in the Said Premises given on Sub-Lease by Sub-Lessor, to keep the Said Premises in proper tenantable condition and not to cause any damage thereto.
- (xiii) to vacate and hand over the Said Premises to the Sub-Lessor on expiry of the Term or earlier termination thereof in terms of this Sub-Lease Agreement and lease Agreement in tenantable condition subject to normal wear and tear.
- (xiv) The Sub-Lessee shall have the right to fix menus, rates, method of presentation, etc., and shall also be entitled to do such sales promotion as may be deemed fit by the Sub-Lessee from the Said Premises and the Sub-Lessor shall not interfere in any manner whatsoever in operating and running of the Said Business provided the Said Business are as per the terms and condition of this agreement.
- (xv) The Sub-Lessee shall be entitled to engage the service of security guards or other agencies to maintain and upkeep the Said Premises. The Sub-Lessee agrees and undertakes to keep the Said Premises and its surroundings clean and not to dump its/his/her waste anywhere in the station premises and not to place any board/placard/signage in the way or outside the Said Premises apart from prior permission/approval of the Sub-Lessor and the additional space for signage shall be chargeable and the charges shall be mutually decided between the parties as and when availed.

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- (xvi) The Sub-Lessee shall not be entitled to further sub-sub-lease the use of the Said Premises.
- (xvii) The Sub- Lessee agrees to comply with all instruction/ order/ notices issued by DMRC with respect to the Said Business running from the Said Premises.
- (xviii) to abide by the terms and conditions of the Lease Agreement executed between Sub-Lessor and DMRC, which relates to the use and occupation of the Said Premises by the Sub-Lessee, to the extent it is required to be complied with by the Sub- Lessee. It is acknowledged and admitted by the Sub- Lessee that the Sub-Lessor has furnished to the Sub- Lessee a copy of the Lease Agreement referred to above.
- (xix) The Sub- Lessee shall ensure that its agents and employees do not, without prior consent of the Sub-Lessor/DMRC, use such part or parts abutting/surrounding the Leased Area. The Sub- Lessee shall not be entitled to claim any vested right to any parking space and shall be permitted to park vehicles with the permission of the Sub-Lessor /DMRC subject to availability in terms of Lease agreement on such terms and charges that may be stipulated in this regard.
- (xx) To keep its surroundings clean & tidy and will keep all its belongings and material within its Said Premises. If the Sub-Lessor/DMRC find any extra space used/occupied by Sub-Lessee or not keeping its surrounding clean, then the Sub-Lessor have the right to raise monetary penalty which needs to be paid by the Sub- Lessee within 7 days of receipt of the same and if this continues for second time then it will automatically become an event of default for termination. It is the responsibility of the Sub- Lessee to ensure that no nuisance/encroachment in and around its/his Said Premises/common area is being created and if the same is found then the Sub-Lessor can impose any monetary penalty which will be paid within 7 days of receipt of the same and on recurrence of such event again it shall become event of default and shall lead to termination.
- (xxi) The Sub-lessee should put Coming soon flex on glass glazing during fit-out period till the store or outlet open.

ARTICLE – 9

9. TERMINATION

9.1 **Lock-in-Period for both Parties:** The Lock-in-Period for both the Parties shall be of the term which is 18 (eighteen) months (herein “Lock-In-Period”) from expiry of Fit-out-Period or commencement of the said Business, whichever is earlier. In case the Sub-Lessee terminates this Sub-Lease Agreement or vacates the Said Premises for any reasons, whatsoever, prior to expiry of the Lock-In-Period, the Sub-Lessee shall be liable to pay to the Sub-Lessor the Lease Rent and other charges for the unexpired Lock-In-Period.

9.2 (i) **Termination by Sub-Lessor:**

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(a) Sub-Lessor in its sole discretion, may terminate this Sub-Lease Agreement during Lock-In-Period due to any of the following events of default by the Sub Lessee:

- Only on non-payment of Lease Rent by Sub-Lessee for 2 (two) consecutive months.
- If the Said Premises is used for a purpose other than the Said Business.
- Any material breach in conditions of this agreement and Lease Agreement.
- A failure to perform or discharge any of its obligations in accordance with the provisions of this Sub Lease Agreement, unless such event has occurred because of a Force Majeure Event, or due to reasons solely attributable to Sub-Lessor without any contributory factor of the Sub Lessee.

The Sub-Lessor in the aforesaid circumstances shall first give written notice to the Sub Lessee requiring the Sub Lessee to pay the outstanding and/or rectify the default/breach within the notice period being the curing period of one month (30 days) ["Cure Period"]. During the Cure Period, the Sub Lessee shall continue to fulfil its obligations under this Sub Lease Agreement which can be fulfilled.

Even if during the Cure Period the Sub Lessee fails to rectify such breach/default, Sub-Lessor would have the right to terminate this Sub Lease Agreement with immediate effect without giving any notice to the Sub-Lessee.

(ii) Termination by Sub Lessee:

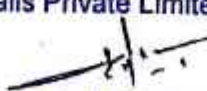
(a) The Sub-Lessee shall be entitled, at any time during the subsistence of the Term after Lock-In Period to terminate the lease by issuing 3 (three) months' prior written notice to the Sub-Lessor or by paying equivalent Lease Rent in lieu thereof, without assigning any reason, therefore.

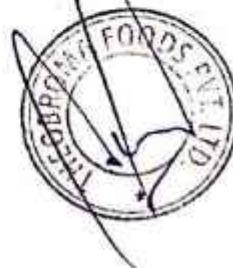
(iii) Consequences of termination:

Upon termination or expiry of this Sub Lease Agreement:

- i. In case of early determination of Sub Lease Agreement, the Sub Lessee shall within 7 days of such termination surrender the Said Premises in terms of Lease Agreement executed between DMRC and Sub-Lessor. i.e., the Sub-lessee or any other person acting through or under then shall not remove any of the facilities at Leased Space(s) including all equipment and other fixtures attached to the Leased Space(s) and shall remove only movables which can be removed without causing any damage to the structure of the Leased Area
- ii. In case of termination of Sub Lease Agreement due to efflux of time, the Sub Lessee shall within 7 days prior to such expiration surrender the Said Premises in terms of Lease Agreement i.e., the Sub-lessee or any other

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person acting through or under then shall not remove any of the facilities at Leased Space(s) including all equipment and other fixtures attached to the Leased Space(s) and shall remove only movables which can be removed without causing any damage to the structure of the Leased Area

- iii. If the Sub Lessee fails to surrender the Said Premises, Sub-Lessor may, without out notice and without prejudice to any other remedy have the option to enter upon and take possession of the Said Premises and expel or remove the Sub Lessee in terms of Lease Agreement without being liable to prosecution or any claim for damages there for. The Sub- Lessee shall be bound to pay proportionately per day to the Sub-Lessor by way of damages 3 times of the average of the last six-month Lease Rent as penalty for the wrongful occupation of the Said Premises.
- iv. In the event the Sub Lessee does not make payment of the outstanding amounts within the time period mentioned above and/or fails to remove its goods/equipment etc. and/or fails to hand over vacant and peaceful charge of the said Premises in a bare-shell condition, then in such event the Sub Lessor shall be entitled, without prejudice to its other rights and remedies, to deal with and dispose of such goods/equipment etc. in any manner as it may deem fit without any reference or interference by the Sub Lessee or any person claiming by, from, through or under it, at Sub Lessee's cost.
- v. If the Sub Lessee fails to repair any damage caused to Said Premises promptly after the expiration or earlier termination of the agreement, Sub-Lessor may, but need not, do the repair work and in such a case the Sub Lessee shall be liable to pay Sub-Lessor the cost thereof upon demand without demur.
- vi. The Sub-Lessor upon the peaceful possession of the Said Premises subject to normal wear and tear refund the Interest Free Security Deposit simultaneously to the Sub Lessee [subject to adjustment of any dues in terms of this Sub Lease agreement]. If the Sub Lessor fails to refund the Interest Free Security Deposit within 60 (sixty) days of handover of keys by Sub Lessee, the Sub lessee shall be entitled to charge interest @18% p.a. on the outstanding amount of security deposit till it is refunded.
- vii. The Sub-Lessor and Sub Lessee shall be released from all obligations and liabilities to the other occurring or arising after the date of such termination, provided however no such termination will relieve either Party from any liability arising under this Agreement occurring prior to termination. Any provision of this Agreement which is expressly or by implication to continue in force after termination shall continue in full force and effect.

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viii. The remedies set forth in this Clause are in addition to and not in limitation of any other rights and remedies of the Sub-Lessor contained in this Sub Lease Agreement, or at law or in equity.

9.3 The Sub-Lessee is hereby clarified that the Sub-Lessor is entitled to sub lease the use of the Said Premises, only during the subsistence of its Lease Agreement with DMRC and the lease granted to the Sub-Lessee under this Sub Lease Agreement shall terminate simultaneously with the Termination of the Lease Agreement (between Sub-Lessor and DMRC) including on sooner determination of the lease for any reason whatsoever. The Sub-Lessee understands and unconditionally agrees and accepts this covenant of termination of the Sub-Lessee rights and further that the Sub-Lessee shall not raise or have any claim whatsoever against Sub-Lessor/DMRC for any such termination or closure of Lease agreement between Sub-Lessor and DMRC.

9.4 **Termination due to a Force Majeure:**

In case a Force Majeure event subsists for a period of 60 (Sixty) days, either Party may in its sole discretion terminate this Sub Lease Agreement by giving 30 (thirty) days prior Termination Notice in writing to the other Party without being liable in any manner whatsoever.

ARTICLE - 10

10. RENEWALS OF SUB-LEASE

Subject to compliance of all the terms, conditions, and stipulations of this agreement by the Sub-Lessee, the Sub-Lease Agreement may be renewed for a period as mutually agreed by the Parties and the commercials/monthly compensation for extended period shall be decided by the parties accordingly. The Sub-Lessee shall exercise the renewable option by means of written communication not later than three months prior to the expiry of the Term. A fresh Sub-Lease Agreement shall be executed and registered on such renewal, if any, at the cost and expenses of the Sub-Lessee. It is clarified that the Term can be maximum of the Lease Period, and it shall be co terminus with the termination of the Lease Agreement of Sub-Lessor with DMRC including on sooner determination of the Lease by DMRC for any reason whatsoever.

ARTICLE - 11

11. FIRE FIGHTING SYSTEM

11.1 The fire-fighting system in the Leased Area has been provided by the Sub-Lessor in accordance with the applicable National Building Code and Fire Fighting norms prescribed by Chief Fire Officer. However, if due to any subsequent

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legislation/Government orders or due to any change in the National Building Code or any applicable law /rules, additional fire safety measures are required to be undertaken, then the Sub-Lessor will do the same.

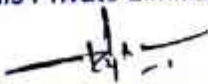
- 11.2 The Sub-Lessee undertakes that all the fire-fighting related work inside the Said Premises as per the fire-fighting regulations and safety systems as prevalent and approved by the Competent Authorities shall be in Sub-Lessee's scope and install drop down sprinkler, detectors/alarm, Response Indicators of above the false ceiling detectors, fire extinguisher cylinders, sand buckets etc. within the Said Premises, which shall be in compliance with the fire-fighting regulations and safety systems as prevalent and approved by the Competent Authorities. Also, the Sub-Lessor shall provide Fire NOC for the building as and when required by the Fire Safety Department.
- 11.3 The Sub- Lessee shall be solely responsible for all legal, financial, and other implications/ consequences arising there from and the Sub- Lessee agrees to keep the Sub-Lessor indemnified and harmless in this regard in all respects. The Sub- Lessee shall be liable and responsible for maintenance of the Fire Fighting system installed in the Said Premises and ensure to keep it functional throughout the term in good condition.

ARTICLE - 12

12. **FORCE MAJEURE**

Neither Party will be liable for any failure or delay in performing an obligation under this Agreement that is due to but not limited to fire, storm, flood, tempest, Act of God, act of terrorism, war/warlike conditions, natural calamities i.e. earthquake, cyclone, war, hostilities, terrorist attacks, mobilization blockade embargo, revolution, riot, looting, strike, lockout, disease, epidemic, pandemic government orders or restrictions, lockdown etc. or any such similar events and including court orders, judgments, lack of permissions/approvals from statutory authority or any other circumstances or any other irresistible force or the said Premises are rendered inaccessible or unfit for the operation of the Sub-Lessee for but not limited to any of the foregoing reasons or unable to operate store completely (herein referred to as "the said **Force Majeure Events**"), and on happening of the said Force Majeure Events, the said Premises is partially damaged and/or and cannot be used without carrying out repairs to the basic structure of the said Premises and/or repairs/replacement of the fit out works of the said Premises and/or the said Premises cannot be accessed until removal of such Government orders/restrictions for any of the foregoing reasons or unable to operate store, then and in such event the obligation to make payment of MC or any other Charges mentioned or a fair proportion thereof shall be suspended till such time Sub-Lessee resumes its 100 % operations from the said Premises or the said Premises have been repaired and/or rendered fit and/or the government order/restrictions have been removed, for the purposes contemplated under this Term Sheet/subsequent document.

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However, during Force Majeure if Sub-Lessee operates its said business from the said Premises, then Sub-Lessee shall pay 75% of Monthly Compensation (MC) & complete CAM to the Sub-Lessor.

For the avoidance of doubt, Force Majeure shall not include (a) financial distress nor the inability of either party to make a profit or avoid a financial loss, (b) changes in the market prices or conditions, or (c) a party's financial inability to perform its obligations hereunder.

ARTICLE - 13

13. REPRESENTATIONS AND WARRANTIES OF THE PARTIES

13.1 The Parties represent and warrant that -

- (i) they have full corporate power and authority to enter into this Sub-Lease Agreement and to take any action and execute any documents required by the terms hereof.
- (ii) this Sub-Lease Agreement has been duly authorized by all necessary corporate proceedings, has been duly and validly executed and delivered by the Parties and constitutes the legal, valid and binding obligations of the Parties, enforceable in accordance with the terms hereof.
- (iii) the executants of this Sub-Lease Agreement on behalf of the Parties have been duly empowered and authorized to execute this Sub-Lease Agreement in accordance with the terms herein set out; and
- (iv) the Parties shall get the Sub-Lease Agreement duly stamped and registered in accordance with the Applicable Laws; All costs including on stamp duty for registration of the Sub-Lease Agreement shall be borne by Sub Lessee and Sub-Lessor in the ratio of 50:50.

13.2 The Sub-Lessor has represented to the Sub- Lessee.

- (i) It is fully entitled to the Said Premises and has obtained the necessary approval of DMRC, for the purposes of developing the Leased Area.
- (ii) it is absolutely entitled to the Said Premises and that it has not created any charge, hypothecation, mortgage, or any other encumbrance of any nature whatsoever or any third-party interest or right in the Said Premises in favor of any other party.

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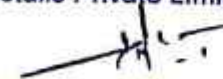
- (iii) To the best of its knowledge and belief, the Said Premises is not the subject matter of any litigation or claim or demand nor has the Sub-Lessor received any notice or claim of any statutory authority or revenue authority.
- (iv) There is no impediment/s whereby the Sub-Lessor is restrained from entering into this Sub Lease Agreement.
- (v) The Sub-Lessor is the absolute lessee, seized and possessed of the Said Premises

ARTICLE - 14

14. IT IS MUTUALLY AGREED BY & BETWEEN THE PARTIES AS FOLLOWS:

- (a) That the Sub-Lessor & DMRC shall not be held responsible for any consequences or liabilities under this Sub Lease Agreement if it is prevented in performing its obligations under the terms of this Sub Lease Agreement by reason of any restrictive governmental laws or regulations, riots, insurrection, war, terrorist action, strike, public demonstrations, rallies, acts of God etc.
- (b) In case of default in payment of CAM, Electricity Charges and Signage Charges (if applicable), Water Charges , and other Utility Charges (if applicable) after 15 days of the expiry of the due date of payment as specified thereon, the Sub-Lessor shall have the right to disconnect some or all services of the Sub-Lessee. If the default continues for 30 days then the Sub-Lessor shall have the right to terminate this Sub Lease Agreement with immediate effect.
- (c) The Sub-Lessor, in its sole discretion, may carry out safety inspections from time to time after giving prior written notice of at least 24 hours to the Sub- Lessee. It is clarified that such inspection(s) shall not absolve the liability of the Sub- Lessee in any manner whatsoever and/or transfer any liability upon the Sub-Lessor because of contravention of safety norms by the Sub- Lessee. The Sub-Lessor may, upon such safety inspection, issue notice/instructions to the Sub- Lessee to take necessary steps as it may deem appropriate, to follow the safety norms and rectify the shortcomings and the Sub- Lessee shall be bound to comply with such instructions within a period of 15 days failing which it shall constitute an Event of Termination under this Agreement.
- (d) Without affecting the generality of the preceding provision of this Agreement the Sub-Lessor may close, lock-up or otherwise control the common areas or any part thereof from time to time and may take all such actions as the Sub-Lessor deems necessary for the purposes aforesaid, including but not limited to repair/ maintenance / upkeep of the

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Leased Area and/or common areas subject to it should not hamper smooth operations of Said Business.

- (c) That the annexures, schedules, appendices, if any, to this Agreement shall be deemed to be incorporated in and form an integral part of this Agreement to Sub-Lease. This Sub Lease Agreement together with the Lease Agreement constitutes the entire understanding between the Parties and revokes and supersedes all previous discussions/ correspondence, if any between the Parties, concerning the matters covered herein whether written, oral, or implied.
- (f) That the Sub- Lessee clearly agrees and understands that the Sub-Lessor and DMRC shall not be liable and/or responsible for any claim of whatsoever nature in the event of any mechanical defect and / or electrical failure in the Said Premises.

ARTICLE – 15

15. INDEMNIFICATION

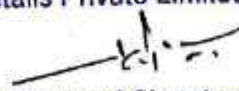
- 15.1 Notwithstanding anything to the contrary, the Parties hereby undertake to indemnify and keep indemnified each other and their directors, employees and agents against all claims, demands, damages, penalties, costs, or expenses of any kind whatsoever, which may arise against or be incurred by their respective employees in connection with any action/omission on their part pursuant to or in connection with this Sub-Lease Agreement.
- 15.2 The Sub- Lessee shall be solely responsible for any loss, damage or injury caused to any property, material or human life that takes place whether directly or indirectly through accident or through the defective or damaged condition of any part of the interior of the Said Premises or any fittings, fixtures or wiring therein for the repair of which the Sub-Lessor is responsible hereunder including any accident/incident which has occurred in the Said Premises whether directly or indirectly by way of fire, smoke, flow of water, accidents. Sub- Lessee is responsible hereunder for including any accident/incident which has occurred due to inflammable materials, chemicals, and any other materials attributable to negligence of the Sub-Lessee or its employees, agents, or customers. The Sub-Lessee agrees and undertakes to indemnify all the pecuniary and consequential losses and damages caused to the Sub-Lessor/ affected person(s) and shall keep the Sub-Lessor harmless and fully indemnified in this regard.

ARTICLE - 16

16. ADDITIONS / RENOVATIONS / ALTERATIONS

- 16.1 The Sub- Lessee shall keep the Said Premises in tenantable and proper condition and shall not damage the same. The Sub Lessee shall not make or cause to be made any

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addition or alteration in the structure/ elevation and outside color scheme of the Said Premises.

- 16.2 The Sub- Lessee may carry out any additions and/or alterations including interior works of temporary removable nature inside the Said Premises as may be necessary for carrying out its business without causing any damage to the Leased Area/Said Premises or neighboring premises and in accordance with law but shall not carry out any structural changes in the Said Premises. The Sub- Lessee shall indemnify and keep the Sub-Lessor indemnified for any loss or damage done to any life or property of Sub-Lessor in the event of any such damage.

ARTICLE - 17

17. USES OF COMMON AREAS

- 17.1. The Sub- Lessee shall not in any way obstruct the entrance, passages, walk-space, corridors, service-ways, staircases, fire-escapes etc. or any part of the common areas or convenience thereto and shall not in any way obstruct any lights, windows or other means of lights / natural lights of the common areas or of the building generally.
- 17.2 That the common area facilities and amenities, within the Leased Area shall be available for use to the Sub- Lessee during the entire tenure of this Agreement. The Sub- Lessee shall have no ownership rights, title, interests or claim whatsoever in the Leased Area, common areas, facilities and amenities within or outside the Leased Area.
- 17.3 That the Sub- Lessee shall not place or display any merchandise or advertising material of any nature whatsoever outside the Said Premises or in any part of the common area without the prior approval in writing of the Sub-Lessor.

ARTICLE - 18

18. INSURANCES

- 18.1 The Sub- Lessee shall take adequate insurance policies for the equipment, fittings and fixtures installed in the Said Premises and the merchandise displayed/stored therein and against risk of loss / damages to any third parties. The Sub- Lessee shall provide copies of such insurance cover notes/ policies/ renewals to the Sub-Lessor within seven days of written demand by the Sub-Lessor.
- 18.2 The Sub- Lessee shall not do or permit to be done any act or thing which may render void or voidable any insurance policy of the Leased Area or any part thereof or to cause any increase in premium in respect thereof.

ARTICLE - 19

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19. OPERATION TIMINGS

The Sub- Lessee shall operate its specific business only from the Said Premises, as appearing herein before, during statutory operation timings as prevailing from time to time as may be prescribed under the prevailing laws and being commensurate with the other occupants of the Leased Area. The Sub- Lessee shall conform to such operational timings and shall be solely responsible for the consequences of any breaches or for operating/ working in the Said Premises during any prescribed 'Public Holiday'.

ARTICLE – 20

20. REPAIR / INSPECTION

The Sub- Lessee shall allow the officers and employees of the DMRC/Authority/ Sub-Lessor to enter the Said Premises at all reasonable times and in a reasonable manner for the purpose of ascertaining whether the terms and conditions to be observed under the rules and regulations, applicable laws and the Sub-Lease Agreement are being observed and complied with or not.

ARTICLE – 21

21. APPROVALS

The Sub- Lessee shall obtain at its own cost and expenses all requisite licenses, permits, permissions, approvals, sanctions etc. from the authorities concerned from time to time, as required for the running, management and operation of the Said Business and shall always keep the Sub-Lessor harmless and indemnified from any claims/penalties/proceedings civil or criminal initiated by the said authorities and/or the Sub- Lessee's, employees, workmen etc., in connection with the business of the Sub- Lessee at the Said Premises.

ARTICLE – 22

22. LOGO / TRADEMARK

- 22.1 The Sub- Lessee shall not without the Sub-Lessor's prior written consent, use the trademark/logo/design belonging to the Sub-Lessor or the name of the Leased Area or any picture or the Said Premises whether registered or unregistered for the purpose of advertisement, promotion etc. however the Sub- Lessee shall be entitled to manage and control promotional merchandising from the Said Premises, provided such image promotional material always suffixes the name of the Leased Area.

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- 22.2 The Sub-Lessor shall be entitled to use Sub-Lessee logo/ name/ trademark as required for promotional activities/ advertisement/ Sub-Lessor's website etc only with prior written consent from the Sub- Lessee.

ARTICLE - 23

23. TAX, RATES AND DUTIES

The taxes in respect of the business of the Sub-Lessee and statutory outgoing in respect thereof, shall be the sole liability of the Sub- Lessee, and will be borne and paid by the Sub- Lessee.

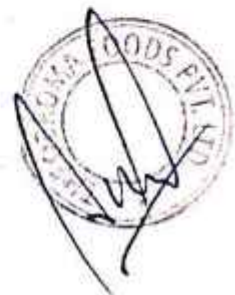
ARTICLE - 24

24. COMPLIANCES

- 24.1 The Sub- Lessee has familiarized itself with and understood the terms and conditions of Lease Agreement and agrees to observe and abide by the terms of the Lease Agreement, executed between the DMRC and the Sub-Lessor and the rules/regulations applicable there under. Further the Sub Lessee accepts that in case of clash between the terms of Lease Agreement and this Sub Lease agreement between the Sub-Lessor and Sub-Lessee, the terms/provisions of Lease Agreement will prevail and govern.
- 24.2 The Sub- Lessee hereby confirms that it has carefully read the terms and conditions of Sub-Lease Agreement of the Said Premises and understood its obligations & liabilities set forth herein and the Sub- Lessee has neither relied upon nor is influenced by any brochures, advertisements, representations, warranties, statements or estimates of any nature whatsoever written or oral made by the Sub-Lessor. The Sub Lessee has relied upon only on the data/matter/things as specifically represented in this Agreement and the Sub- Lessee in its own judgement and investigation(s) has decided to enter into this Agreement which is self-contained, complete and final in all respects and the Sub-Lessee undertakes to faithfully abide by all the terms and conditions of the same. The Sub-Lessee further assures the Sub-Lessor that it has taken proper advice of competent legal counsel/ advocates to interpret the provisions of the Agreement before execution of the same.
- 24.3 The Sub-Lease Agreement shall be subject to such Government Regulations as may be in force from time to time. The Sub-Lessee confirms that it is executing this Agreement with full knowledge of all the laws, byelaws, rules, regulations, notifications, etc. which are applicable to the Leased Area and the Said Premises.
- 24.4 The Sub-Lessee hereby agrees to comply with all the Laws as may be applicable to the Said Premises including but not limited to the provisions of Environment (Protection) Act, 1986, Water (Prevention and Control of Pollution) Act, 1974 and Air (Prevention

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and Control of Pollution) Act, 1981 in the Said Premises and it shall always remain solely responsible to obtain and always keep alive and make available necessary certificates from the Pollution Control Board and/or other appropriate authorities in this regard.

24.5 The Sub-Lessee further covenants with the Sub-Lessor to and perform the following:

- (i) To carry out the day-to-day maintenance of the Said Premises and the fixtures and fittings installed therein and the normal maintenance, minor repairs, including painting and polishing the interior of the Said Premises at its own cost.
- (ii) That the Sub-Lessee will use or permit to be used for receipt, delivery or movement of any goods, wares or merchandise or articles of bulk or quantity only such parts of the Said Premises and the common areas and at such times as the Sub-Lessor /Maintenance Agency may from time to time direct and at such times as are prescribed by the Sub-Lessor.
- (iii) The Sub-Lessee shall load and unload its goods from the place as suggested by Sub-Lessor/DMRC, strictly in accordance with the Building Rules, Regulations/Guidelines issued and approved by DMRC and shall be applicable from time to time and only at such hours and through such service entrances as shall be designated by the Sub-Lessor to ensure that it does not cause any obstruction, nuisance, hindrance to commuter and traffic movement. The Sub-Lessee shall ensure that no vehicle shall be parked in the station premises except while loading or unloading the material for them as suggested in this clause.

ARTICLE - 25

25. SIGNAGES

25.1 The Sub-Lessee shall be responsible for installing and maintaining signages, so allotted by the Sub-Lessor, in a well-lit and appropriate manner at its own cost and shall strictly follow any guidelines issued by the Sub-Lessor and DMRC in this regard.

25.2 The Sub-Lessee shall be allowed to advertise only at the outlet/Said Premises front/top façade after getting permission/NOC from the MCD (signage/branding department). Any additional area for advertisement shall be chargeable and the cost of such advertisement shall be chargeable as per the area being used for such additional advertising/branding.

25.3 The Sub-Lessee shall be entitled to put up its name boards/ main signage/ lollypop branding on the façade of the Premises. Sub-Lessee is also entitled to put the name boards of its store and products as well as its own posters, placards, and other displays on/and within the Said Premises.

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ARTICLE - 26

26. MORTGAGE/CHARGE

The Sub-Lessee will not in respect of the Said Premises create encumbrance of any kind including mortgage, charge, collateral security etc. in favor of third party or otherwise. The Sub-Lessee agrees and consents that it would have no objection to the Sub-Lessor raising finance by way of mortgage/charge on receivables of the Said Premises or any other mode subject to, however, that the creation of such mortgage / charge of the Said Premises shall not affect the rights of the Sub-Lessee to use the Said Premises during the Term of this agreement.

ARTICLE - 27

27. POWER & WATER

The Sub-Lessee shall pay, from the date of taking the Said Premises for fit outs, charges for the consumption of electric power and light as per the consumption directly to the Sub-Lessor /Maintenance Agency within 10 (ten) days from the receipt of the invoice by the Sub-Lessor and as per the bills/reimbursement received against the meters/sub meters/as raised by Sub-Lessor to other occupants provided for that purpose in respect of the Said Premises during the occurrence of Sub-Lease Agreement.

The Sub-Lessee shall install a dedicated sub-meter in the Said Premises at its own cost and expense along with bearing the costs for the hardware, including the cables.

ARTICLE - 28

28. LIQUIDATION / INSOLVENCY

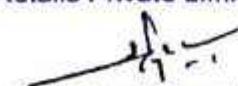
In the event of the Sub-Lessee being adjudged insolvent and the company / firm being liquidated, the Sub-Lease Agreement shall stand automatically terminated and the Sub-Lessee shall surrender the Said Premises to the Sub-Lessor which shall be without prejudice with the rights of the Sub-Lessor to claim / recover its dues along with interest / damages till the date of termination.

ARTICLE - 29

29. ARBITRATION

- 29.1. The Parties agree that they shall attempt to resolve through good faith and consultation, any dispute or difference between any of the Parties in respect of or concerning or connected with the interpretation or implementation of this Sub-Lease Agreement or arising out of this Sub-Lease Agreement. In the event of the dispute or difference between the Parties not getting resolved, such dispute or difference shall be referred to

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the sole arbitrator appointed mutually by the Parties under the provisions of the Arbitration and Conciliation Act of 1996 or any statutory modification or amendment thereof. The award of the sole arbitrator shall be final and binding on both the Parties. The arbitration proceedings shall be held in English language in New Delhi. The cost of arbitration shall be borne in equal proportion among the parties in disputes.

- 29.2 The existence of any dispute(s) or difference(s) or initiation or continuance of the arbitration proceedings shall not permit the Parties to postpone or delay the performance by the Parties to the arbitration of their respective obligations pursuant to this Sub-Lease Agreement.
- 29.3 The provisions contained in this Article shall survive any termination of this Sub-Lease Agreement.
- 29.4 The Sub-Lessor and Sub-Lessee unconditionally agree & accept that any dispute whatsoever under this sub lease agreement shall in no way and at no point of time restrict/infringe on any of the rights of DMRC on the Said Premises or any other right of DMRC whatsoever. The disputes shall be settled /claimed only mutually without affecting any right of DMRC.

ARTICLE - 30

30. JURISDICTIONS

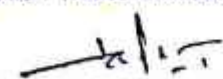
The validity, construction, and performance of this Term Sheet and/or any subsequent document entered between the Parties in respect of the captioned Premises shall be governed and interpreted in accordance with the laws of India and only the Courts at New Delhi shall have exclusive jurisdiction in respect of all matters relating to or arising out of this Term Sheet/subsequent document.

ARTICLE - 31

31. ASSIGNMENT

- 31.1 The Sub-Lessee shall not assign the rights available to it under this Agreement.
- 31.2 The Sub-Lessor subject to the terms of the Lease Agreement and approval from DMRC and written intimation to the Sub-Lessee shall be entitled to assign its rights in the Said Premises to any other party without in any way affecting the rights of the Sub-Lessee to the Said Premises under the terms of this Sub-Lease Agreement. The assignee shall be made aware of the terms of this Sub-Lease Agreement and the assignee shall be bound to comply with the terms of this Sub-Lease Agreement with the Sub-Lessee. The Sub-Lessee agrees to ensure the assignee pay future Lease Rent to the assignee for the

For Blueridge Retails Private Limited


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remaining period of the Term and to continue to abide by the terms of this Sub-Lease Agreement.

ARTICLE 32

32. CONFIDENTIALITY

- 32.1 Either party acknowledges the absolute and complete right, title and interest of each Parties in all the data and information that may be provided to the other Party in the course of this Term Sheet or under the terms and conditions hereof. Both the parties hereby irrevocably and unconditionally undertake and covenant to protect the right, title and interest of the Parties of this Term Sheet in all such data and information that may be made available to the other Party under the terms or in the course of this Term Sheet and for this purpose, to do all such acts, matters and things as may be required.
- 32.2 The terms, conditions, parameters, and all aspects of this agreement are confidential and either Party shall not disclose the same or in any way make any third Party aware about the same save as be required to be disclosed under law to any statutory authority.
- 32.3 Parties shall not use or allow others to use the terms and conditions herein agreed as precedents in future commercial negotiations or transactions with the third Parties.
- 32.4 The confidentiality obligations of the Parties shall also survive after the termination or expiry of this Agreement.

ARTICLE - 33

33. MISCELLANEOUS

- 33.1 The Sub-Lessor and the Sub-Lessee shall be and act as independent parties and under no circumstances shall this Sub-Lease Agreement be construed as one of agency, partnership, or joint venture between any of them. The relationship between the Sub-Lessor and the Sub-Lessee under/or in pursuance of this Sub-Lease Agreement is as between a principal and principal. Furthermore, no relationship in partnership or association of persons is hereby being created or intended to be created between the Sub-Lessor on one hand and the Sub-Lessee on the other in connection with and/or relating to the Said Premises to be operated by the Sub-Lessee pursuant to this Sub-Lease Agreement.
- 33.2 This Sub Lease Agreement shall be duly stamped and registered under the Indian Registration Act 1908. All the costs including but not limited to the stamping & registration cost of this Sub Lease Agreement shall be borne by Sub-Lessor & Sub-lessee equally in 50-50 ratio.

For Blueridge Retails Private Limited


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- 33.3 This Sub-Lease Agreement and the documents related hereto set forth the entire understanding of the Parties relating to the subject matter hereof, and all other and/or prior understandings, whether written or oral, are hereby superseded.
- 33.4 This Sub-Lease Agreement may not be modified, amended, waived, terminated, or supplemented except in accordance with its express terms and in writing executed by the Sub-Lessor and the Sub-Lessee.
- 33.5 The Parties unconditionally agree & accept that they shall seek their rights/claims under this sub lease agreement only with each other and further that the DMRC and its all rights shall always be kept completely insulated by both parties from any legal/contractual hassles whatsoever may get generated due to the execution of this sub lease agreement. Also, the sub-Lessee unconditionally accepts that no claim whatsoever and on whatever ground under this Sub Lease Agreement shall be raised by it against DMRC, the owner of the Said Premises.
- 33.6 Any provision of this Sub-Lease Agreement, which is or may become prohibited or unenforceable in law, shall be ineffective only to the extent of such prohibition or unenforceability without invalidating or affecting the remaining provisions of this Sub-Lease Agreement.
- 33.7 Each of the rights of the Parties hereto under this Sub-Lease Agreement are independent, cumulative and without prejudice to all other rights available to them, and the exercise or non-exercise of any such rights shall not prejudice or constitute a waiver of any other right of the Parties hereto, under this Sub-Lease Agreement.
- 33.8 The Parties recognize and agree that nothing contained in this Sub-Lease Agreement shall be construed to constitute a transfer of title to the Said Premises in favor of the Sub-Lessee. Sub-Lessee does hereby specifically covenant with the Sub-Lessor that it has only permissive right to operate from the Said Premises as provided herein and that it shall, at any time and under any circumstances do not claim any right, title, or interest whatsoever or possession in respect of the Said Premises and this is made the essence of this Sub-Lease Agreement.
- 33.9 All notices required and permitted under the provisions of this Sub-Lease Agreement or by law to be served upon or to be given to a Party hereto by any other Party hereto shall be deemed duly served or given:
- (i) on the date of service, if served personally
 - (ii) on the 7th day after service, if sent by registered post and addressed as follows:-

If to Sub-Lessee:

For Blueridge Retails Private Limited


Authorised Signatory

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Address: 32-33A, Deonar Village Road, Deonar, Opp Metal Box Company,
Govandi-400088, Mumbai, Maharashtra,
Attention: Ms. Simantini Budukh
Email: legal@theobroma.in

If to the Sub-Lessor:

Address: 201-212, Second Floor, Splendor Forum Jasola District Centre New Delhi-
110025
Attention: Mr. Rajeev Chauhan
Email: rajeev.chauhan@eldecoproperties.com

IN WITNESS WHEREOF, the Parties have executed this Sub-Lease Deed as of the date first written above

For through its duly authorised signatory
Blue Ridge Retails Private Limited

For Blue Ridge Retails Private Limited

Name: Mr. Rajeev Chauhan
(Authorized Signatory)

Date:

In the presence of WITNESS:

(a) Mr. Deepak Panchal
S/o R N Panchal
R/o B-247/6 Lakhapat
Colony Part-1
Meethapur Badli
Delhi-110044
9152 0187 6391

For through its duly authorised signatory
Theobroma Foods Pvt. Ltd.

Name: Mr. Dinesh Kumar
(Authorized Signatory)

Date:

In the presence of WITNESS:

(a) Mr. Vikas Kumar
S/o Sh. Krishan Lal
R/o J-214 Swarni
Dayanand Colony
Kishan Ganj Market
Ganj Delhi
3685 7113 2711



Proofing Number: 2025/19/7464
Presenter Name: Blue Ridge Retails Private Limited

Certificate (Section 60)

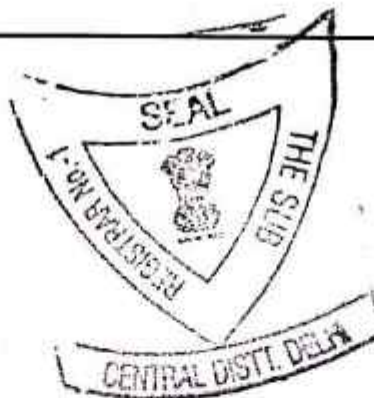
Office of the SubRegistrar-I, Kashmere Gate (Central)

Registration No: 2025/19/I/8163 in Book No : I, Volume No : 12407,
Page No. on page 33 to 94 on this date 27-Jun-2025 day Friday.



Date:- 27-Jun-2025

Registering Officer
SubRegistrar-I, Kashmere Gate
(Central)





Government of National Capital Territory of Delhi
e-Registration Fee Receipt

Receipt No DL1992181285121
Issue Date 06-MAY-2025 19:29
ACC Reference SHCIL/SHCIL NCT OF DELHI/NEHRU PLACE
ESI Certificate No IN-DL80029313486458X
Purchased By BLUE RIDGE RETAILS PRIVATE LIMITED
Registration Fees Paid By BLUE RIDGE RETAILS PRIVATE LIMITED
Property Description SHOP NO 03 GROUND FLOOR ELDECO JUNCTION KASHMIRI
GATE METRO STATION NEW DELHI-110006
Purpose Article 35(iii) Lease with security upto 10 years

Particulars	Amount (Rs.)
Registration Fee	₹ 1,000.00
Copying Fees	₹ 100.00
Service Charges	₹ 15.00
CGST @ 9 % *	₹ 1.00
SGST @ 9 % *	₹ 1.00
Total Amount	₹ 1,117.00

(Rupees One Thousand One Hundred Seventeen Only)

Statutory Alert : This is a receipt of fees collected and should not be treated as receipt of Registration.
The authenticity of e-Registration Fee Receipt can be be verified at website i.e.
<https://www.shcilestamp.com/Registration/> .



*GSTIN Number : 07AABCS1429B1ZW

PAN: AABCS1429B

CIN: U67190MH1986GOI040506

SAC : 998599

PREMISES : IFCI Tower, 5th Floor, A wing, 61, Nehru Place, New Delhi-110019

For Blueridge Retails Private Limited

Authorised Signatory

